

CHAPTER 25

An Act to amend the law relating to the constitution and proceedings of the Police Federations.

[24th May, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to
prescribe
constitution
and pro-
ceedings of
Federations.
9 & 10 Geo. 5.
c. 46.

1.—(1) Subject to this section, the Secretary of State may by regulations prescribe the constitution and proceedings of the Police Federations established under section one of the Police Act, 1919, for England and Wales and for Scotland, and those regulations shall have effect in place of the provisions governing the Federations contained in the Schedule to that Act.

(2) Before making any regulations under this section the Secretary of State shall consult the three Central Committees of the Police Federation to which the regulations will relate, sitting together as a Joint Committee; and any such regulations, which shall be made by statutory instrument, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Without prejudice to the generality of subsection (1) of this section, regulations under this section may make provision—

- (a) with respect to the membership of the Federations;
- (b) with respect to the raising of funds by the Federations by voluntary subscription and the use and management of funds derived from such subscriptions;
- (c) for the treatment of attendance at meetings of committees and other bodies of the Federations as an occasion of police duty for the purpose of allowances and expenses; and
- (d) for the payment by the Secretary of State of expenses incurred in connection with the Federations;

and any provision under paragraph (a) of this subsection shall have effect notwithstanding anything in subsection (1) of section one of the said Act of 1919.

(4) Regulations under this section may contain such transitional and consequential provisions as the Secretary of State thinks fit, including provisions adapting references in any enactment (including this Act) to committees or other bodies of the Federations.

(5) As from the date on which regulations under this section first come into force, references in subsection (1) of section one of the said Act of 1919 to the Schedule to that Act shall include references to regulations under this section.

(6) So much of subsection (1) of section thirteen of the said Act of 1919 as enables the Secretary of State to adapt the Schedule to that Act to the circumstances of Scotland shall cease to have effect, but this subsection shall not affect any orders under that section made before the passing of this Act.

(7) There shall be paid out of money provided by Parliament any expenditure of the Secretary of State, and any increase in the sums so payable under any other Act, which is attributable to this Act.

2.—(1) This Act may be cited as the Police Federations Act, 1962. Short title,
repeal,
and extent.

(2) The enactments specified in Part I of the Schedule to this Act shall to the extent specified in the third column of that Schedule be repealed—

(a) for England on the date on which regulations relating to the Police Federation established for England and Wales first come into force under this Act, and

(b) for Scotland on the date on which regulations relating to the Police Federation established for Scotland first come into force under this Act,

and on the date on which those enactments are repealed for Scotland the instruments specified in Part II of that Schedule (which make Scottish adaptations in the Schedule to the said Act of 1919) shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act does not extend to Northern Ireland.

SCHEDULE

Section 2.

REPEALS

PART I

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 5. c. 46.	The Police Act, 1919.	The Schedule, except paragraph 18.
9 & 10 Geo. 6. c. 46.	The Police Act, 1946.	In the Second Schedule, paragraph 9.
7 & 8 Eliz. 2. c. 38.	The Police Federation Act, 1959.	The whole Act.
9 & 10 Eliz. 2. c. 51.	The Police Federation Act, 1961.	The whole Act.

PART II

Reference number	Title	Extent of Repeal
S.R. & O. 1919 No. 2235.	The Police Act, 1919 (Scotland) Order.	In article one, paragraphs (1) to (5).
S.R. & O. 1923 No. 957.	The Police Act, 1919 (Scotland) Order.	The whole Order.
S.I. 1950 No. 1436.	The Police Act, 1919 (Scotland) Order.	The whole Order.